

24STCV11212 24STCV11212

County: los-angeles

Division: Civil Law and Motion

Department: 1

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Case Number: 24STCV11212 Hearing Date: June 29, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department

1

Morales

vs Certus Pest, Inc., et al.

Case

Number: 24STCV11212

Hearing: Juen 29, 2026

TENTATIVE

RULING

The

Court hereby GRANTS final approval and awards/approves the following:

(1) \$283,333.33 for attorney fees to Class Counsel, D.Law, Inc.; (2) \$23,609.40 for attorney costs to Class Counsel; (3) enhancement payment of \$7,500 each to the two class representatives for a total of \$15,000; (4) \$30,000 (75% of \$40,000 PAGA penalty) to the LWDA; and (5) \$7,950 for settlement administration costs to Phoenix Class Action Administration Solutions.

Plaintiff's counsel shall file a

proposed Order and Judgment, consistent with this ruling containing all requisite terms, including the class definition, release language, and a statement that no class members requested exclusion. The Court orders class counsel to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court will set a non-appearance date for submission of a final report for _____, with the final report due to be filed at least five court days beforehand.

BACKGROUND

This is a wage and hour class action.

On April 23, 2024, Named Plaintiff Jose Smith filed a class action complaint in Riverside County Superior Court against named defendants Certus Pest, Inc. and Purcor Pest Control, Case No. CVRI2402328, with seven causes of action: (1) failure to pay all overtime wages; (2) meal period violations; (3) rest period violations; (4) failure to pay all sick time; (5) wage statement violations; (6) waiting time penalties; and (7) unfair competition.

On May 3, 2024, Named Plaintiff Isaiah

Morales filed this class action complaint against named defendants Certus Pest, Inc. and Gopher Patrol, with eleven causes of action: (1) failure to pay minimum wages; (2) failure to pay wages and overtime; (3) meal period liability; (4) rest break liability; (5) violation of Labor Code § 226; (6) violation of Labor Code § 221; (7) violation of Labor Code § 204; (8) violations of Labor Code § 203; (9) failure to maintain records; (10) failure to reimburse necessary business expenses; and (11) unfair competition.

On July 9, 2024, Plaintiff Morales

filed a First Amended Class Action Complaint, adding a twelfth cause of action under PAGA. On June 19, 2025, Plaintiff Smith obtained a court order dismissing his Complaint without prejudice. On May 21, 2025, Plaintiff Morales filed a Second Amended Complaint, adding Plaintiff Smith as a named plaintiff, in Los Angeles Superior Court, Case No. 24STCV11212, and including the following causes of action: (1) failure to pay all minimum wages; (2) failure to pay overtime wages; (3) meal period violations; (4) rest period violations; (5) wage statement violations; (6) violation of Labor Code § 221; (7) violation of Labor Code § 204; (8) violation of Labor Code § 203; (9) failure to maintain accurate records; (10) failure to reimburse business expenses; (11) failure to pay all sick time; (12) violation of the Unfair Competition Law; and (13) violation of the Private Attorneys General Act ("PAGA"). The Second Amended

Complaint is the Operative Complaint in the Action.

On March 13, 2025, the Parties participated in a mediation presided over by Kelly A. Knight Esq., where they accepted the mediator's proposal to resolve the Action.

On December 12, 2025 a partially executed copy of the resulting Settlement Agreement is attached as Exhibit 1 to the Declaration of Marta Manus (Manus Decl.) ISO Preliminary Approval.

On January 14, 2026, the Court granted preliminary approval contingent on certain conditions being met. In response, on February 2, 2026, counsel filed a fully executed Amended Settlement Agreement attached as Exhibit 2 to the Supplemental Declaration of Marta Manus (Manus Supp. Decl.) ISO Preliminary Approval.

On February 24, 2026, the Court unconditionally granted the Preliminary Approval Order.

Notice was given to the Class Members as ordered. (See Declaration of Taylor Mitzner ("Mitzner Decl.") (attached as Exhibit 3 to the Declaration of Marta Manus ISO Final Approval; Supplemental Declaration of Taylor Mitzner ("Mitzner Supp. Decl.") (attached as Exhibit 1 to the Supplemental Declaration of Marta Manus ISO Final Approval).)

Now before the Court is the motion for final approval of the settlement agreement.

CLASS

DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT AGREEMENT

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"Class Members"

shall mean all current and former non-exempt employees who worked for Defendant in California at any time during the Class Period. The Class Period is defined below. The "Settlement Class" or "Settlement Class Members" means all Class Members other than those who opt out (see paragraphs 20 and 57.d), as well as PAGA Members (see paragraph 23). (Settlement Agreement, ¶14.)

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"Class Period" means the period from October 23, 2019 to May 13, 2025 ("Class Period"). (§16.)

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There

are 314 Class Members who worked 21,726 workweeks during the Class Period. (Mitzner Decl., §12.)

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"PAGA Members" means

current and former non-exempt employees who worked for Defendant in California at any time during the PAGA Period. (§23.)

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"PAGA Period" shall mean the period from April 23, 2023 through May 13, 2025. (§22.)

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There are 187 Aggrieved Employees who worked a total of 9,775 pay periods during the PAGA Period. (Mitzner Decl., §17.)

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For purposes of this settlement,

Defendant estimated that there were 20,718 workweeks worked by Class Members in California from the beginning of the Class Period through March 13, 2025 (the "Mediation Date"). Should the actual number of workweeks for Settlement Class Members during the Class Period through the Mediation Date exceed 20,718 by more than ten percent (10%), the GSA shall be increased by the actual percentage of increased workweeks above the 10% cushion. For example, if the Settlement Class Member workweeks through the Mediation Date exceed 20,718 by 16%, Defendant shall owe an additional amount equal to 6% of the GSA to proportionately increase the workweek rate of each Settlement Class Member due to the increase in Workweeks Worked. Any additional payment contemplated by this paragraph will not impact enhancement payments or the amount of the PAGA payment. Rather, any additional amounts paid pursuant to this paragraph will be used to increase payments to Settlement Class Members. (§51.g)

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The total number of Workweeks was 21,952, which does

not exceed 22,790; therefore, the Escalator Clause was not triggered. (Mitzner Decl., ¶4.)

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The Gross Settlement

Amount (GSA) is \$850,000, non-reversionary.

(¶51.)

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The Net Settlement Amount

(Net) (\$458,716.67) is the GSA minus the following:

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Up to \$283,333.33 (33.33%)

for attorney fees (¶51.a.);

§ Fee split: 50% of the fees awarded by the Court will be paid to

D.Law, Inc., 25% will be paid to Bokhour Law Group, P.C., and 25% will be paid to Falakassa Law. P.C. (Manus Decl. ISO Preliminary Approval, ¶48.)

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Up to \$50,000 for

litigation costs (¶51.b);

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Up to \$20,000 (\$10,000

x 2) for Service Payments to Named Plaintiffs (¶51.d);

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Up to \$7,950 for

settlement administration costs (¶51.c) and

o

Payment of \$30,000 (75%

of \$40,000 PAGA Payment) to the LWDA. (¶51.e)

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Defendant will pay their

share of taxes in addition to the GSA. (¶51.)

Funding of Settlement:

Defendant will deposit the Funding Payment into an account established by the SA within 30 days of the Effective Date. (§61.)

Uncashed

Settlement Checks: Settlement Class Members

who are sent Settlement Payments shall have one hundred eighty (180) days after mailing by the SA to cash their settlement checks. (§62.) If such Settlement Class Members do not cash their checks within that one hundred eighty (180) day period set forth in paragraph 62, those checks will become void, and a stop payment will be placed on the uncashed checks. Settlement checks that are not cashed within one hundred and eighty (180) days of mailing shall, subject to Court approval, be distributed pursuant to the State Controller Unclaimed Property Fund, or as otherwise directed by California Code of Civil Procedure section 384 and as ordered by the Court. The Parties agree that, if the remaining funds are not able to be distributed to the State Controller Unclaimed Property Fund and if a cy pres fund is required, subject to Court instruction, that the SA shall forward the entire amount of any amounts remaining from uncashed checks, plus any interest that has accrued thereon, to CASA - Court Appointed Special Advocates, an entity in which the Parties all acknowledge that they have no financial interest. In such event, those Settlement Class Members will be deemed to have waived irrevocably any right in or claim to a Settlement Payment subject to their rights, if any, to recover the Settlement Payments from the Unclaimed Property Fund if ordered or otherwise will be extinguished. Settlement Class Members who fail to negotiate their check(s) in a timely fashion shall, like all Settlement Class Members who did not validly opt out of the Settlement, remain subject to the terms of the Settlement and the Final Judgment. (§63.)

The proposed

settlement was submitted to the LWDA on December 12, 2025. (Manus Decl. ISO Preliminary Approval, Exhibit 3.)

ANALYSIS

OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The Court preliminarily found in its Order on February 24, 2026, that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion. Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement fair, adequate, and reasonable?

The settlement was preliminarily found to be fair, adequate and reasonable. Notice has now been given to the Class and the LWDA.

Reaction of the class members to the proposed settlement.

Number of class members: 314 (Mitzner Decl., ¶3.)

Number of notice packets mailed: 314 (Id. at ¶6.)

Number of undeliverable notices: 5 (Mitzner Supp. Decl., ¶4.)

Number of opt-outs: 1 (Id. at ¶5.)

Number of objections: 0 (Id. at ¶6.)

Number of participating Class Members: 313 (Mitzner Decl., ¶3; Mitzner Supp. Decl., ¶5.)

Average estimated Class payment: \$1,513.08 (Mitzner

Decl., ¶14.)

Highest

estimated Class payment: \$5,248.35 (Ibid.)

Lowest

estimated Class payment: \$21.87 (Ibid.)

Number of PAGA

Members: 186 (Id. at ¶15.)

Average PAGA payment:

\$53.48 (Ibid.)

Highest

estimated PAGA payment: \$110.49 (Ibid.)

Lowest

estimated PAGA payment: \$1.02 (Ibid.)

The Court finds that the notice was

given as directed and conforms to due process requirements. Given the reactions of the Class Members and

the LWDA to the proposed settlement and for the reasons set for in the Preliminary

Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel request \$283,333.33 (33%) in fees and litigation

costs and expenses in the amount of \$23,609.40 to Class Counsel. (Manus Decl. ISO

Final, ¶8.) The Settlement provides for attorney's fees up to \$283,333.33 and costs of \$50,000 (Settlement Agreement,

¶¶51.a-b); the class was provided notice of the requested awards and none

objected. (Mitzner Decl., ¶10 and Exhibit A thereto; Mitzner Supp. Decl., ¶6.)

The following fee split has been

agreed to herein: 50% of the fees awarded by the

Court will be paid to D.Law, Inc., 25% will be paid to Bokhour Law Group, P.C.,

and 25% will be paid to Falakassa Law. P.C. (Manus Decl. ISO Preliminary

Approval, ¶48.)

“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.”

(Wershba at 254.)

Here, class counsel requests attorney fees using the percentage method.

(Motion ISO Final, pgs. 6-14.)

The fee

request represents 33% of the gross settlement amount which

is the average generally awarded in class actions. See In

re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13

(“Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”).

Counsel have provided the following

lodestar information:

Biller

Hours

Rate

Total

D.Law, Inc.

152.6

\$250

-\$1,045

\$131,187.50

Bokhour Law Group, P.C

65.5

\$750

\$49,125.00

Falakassa Law. P.C

35.5

\$725

\$25,737.50

TOTAL

253.6

\$206,050.00

(Manus Decl. ISO Final Approval, ¶19 and Exhibit 1 thereto; Falakassa Decl. ISO Final Approval, ¶14; Bokhour Decl. ISO Final Approval, ¶15.)

Therefore, Class Counsel has spent a total of 253.6 hours on this matter for a total loadstar of \$206,050, which requires a multiplier of 1.4 to reach the fee request. (Ibid.)

As for costs, class counsel has incurred costs of \$23,609.40. (Manus Decl. ISO Final Approval, ¶19 and Exhibit 2 thereto; Bokhour Decl. ISO Final Approval, ¶20.)

Class Counsel is requesting \$23,609.40 in costs, which is less than the settlement cap of \$50,000.

(Ibid.) The costs in this case

include, but are not limited to, costs associated the filing/service costs (\$3,478.26), case anywhere costs, mediation costs (\$4,725), and expert costs (Berger Consulting Group)

(\$9,615). (Ibid.) The costs seem

reasonable and necessary to litigation.

Based on the above, the Court awards \$283,333.33 for fees and \$23,609.40 for litigation costs.

D.

Incentive

Award to Class Representatives

The

Settlement Agreement provides for up to \$10,000

for an incentive award to each of the class representatives for a total of \$20,000.

(Settlement Agreement, ¶51.d.)

Plaintiff Morales represents that his contributions

to this litigation include, but are not limited to the following: obtaining

counsel, having numerous conversations with counsel, gathering documents,

reviewing documents, preparing for mediation, and reviewing the settlement

agreement. (Declaration of Plaintiff Morales, ¶10.)

Plaintiff Smith represents that his

contributions to this litigation include, but are not limited to spending 25 to

30 hours on the following: obtaining counsel, having numerous conversations

with counsel, gathering documents, reviewing documents, preparing for

mediation, and reviewing the settlement agreement. (Declaration of Plaintiff Smith, ¶¶4, 6-9.)

The

Court notes that such efforts are commendable, yet not exceptional. Based on

the above, the recommendation is to award an enhancement award in the amount of

\$7,500 per Plaintiff for a total of \$15,000.

E.

Claims

Administration Costs

The claims administrator requests \$7,950 for the costs of administering the settlement. (Mitzner Decl., ¶17.) This

is equal to the \$7,950 maximum amount estimated in the Settlement Agreement; (Settlement

Agreement, ¶51.c); and disclosed in the notice to class members, to which there

were no objections. (Mitzner Decl., ¶10 and Exhibit A thereto; Mitzner Supp.

Decl., ¶6.)

Based on all the work performed by the

Claims Administrator, the Court awards costs in the requested amount of \$7,950.